

Syllabus

(a) Respondents satisfy prudential standing requirements. FECA specifically provides that “[a]ny person” who believes FECA has been violated may file a complaint with the FEC, § 437g(a)(1), and that “[a]ny party aggrieved” by an FEC order dismissing such party’s complaint may seek district court review of the dismissal, § 437g(a)(8)(A). History associates the word “aggrieved” with a congressional intent to cast the standing net broadly—beyond the common-law interests and substantive statutory rights upon which “prudential” standing traditionally rested. *E. g.*, *FCC v. Sanders Brothers Radio Station*, 309 U. S. 470. Moreover, respondents’ asserted injury—their failure to obtain relevant information—is injury of a kind that FECA seeks to address. Pp. 19–20.

(b) Respondents also satisfy constitutional standing requirements. Their inability to obtain information that, they claim, FECA requires AIPAC to make public meets the genuine “injury in fact” requirement that helps assure that the court will adjudicate “[a] concrete, living contest between adversaries.” *Coleman v. Miller*, 307 U. S. 433, 460 (Frankfurter, J., dissenting). *United States v. Richardson*, 418 U. S. 166, distinguished. The fact that the harm at issue is widely shared does not deprive Congress of constitutional power to authorize its vindication in the federal courts where the harm is concrete. See *Public Citizen v. Department of Justice*, 491 U. S. 440, 449–450. The informational injury here, directly related to voting, the most basic of political rights, is sufficiently concrete. Respondents have also satisfied the remaining two constitutional standing requirements: The harm asserted is “fairly traceable” to the FEC’s decision not to issue its complaint, and the courts in this case can “redress” that injury. Pp. 20–25.

(c) Finally, FECA explicitly indicates a congressional intent to alter the traditional view that agency enforcement decisions are not subject to judicial review. *Heckler v. Chaney*, 470 U. S. 821, 832, distinguished. P. 26.

2. Because of the unusual and complex circumstances in which the case arises, the second question presented cannot be addressed here, and the case must be remanded. After the FEC determined that many persons belonging to AIPAC were not “members” under FEC regulations, the Court of Appeals overturned those regulations in another case, in part because it thought they defined membership organizations too narrowly in light of an organization’s First Amendment right to communicate with its members. The FEC’s new “membership organization” rules could significantly affect the interpretative issue presented by Question Two. Thus, the FEC should proceed to determine whether or not AIPAC’s expenditures qualify as “membership communications” under the new rules, and thereby fall outside the scope of “expendi-